

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 2425

By: Hilbert

7
8 COMMITTEE SUBSTITUTE

9 An Act relating to elections; amending 26 O.S. 2021,
10 Section 1-102, as amended by Section 1, Chapter 329,
11 O.S.L. 2023 (26 O.S. Supp. 2025, Section 1-102),
12 which relates to primary elections; clarifying
13 applicability; directing for primary elections to be
14 held on the first Tuesday in March of each even-
15 numbered year; amending 26 O.S. 2021, Section 1-103,
16 which relates to runoff primary elections; directing
17 to for runoff primary election to be held the third
18 Tuesday of June of even-numbered years; amending 26
19 O.S. 2021, Section 3-101, as last amended by Section
20 1, Chapter 283, O.S.L. 2025 (26 O.S. Supp. 2025,
21 Section 3-101), which relates to dates of elections;
22 permitting elections to be held on the first Tuesday
23 of March in any even numbered year; permitting
24 elections to be held on the fourth Tuesday of August
in any odd-numbered year; amending 26 O.S. 2021,
Section 4-119, which relates to change of political
affiliation; prohibiting change of political
affiliation from December first in an odd-numbered
year to June thirtieth the subsequent even-numbered
year; amending 26 O.S. 2021, Section 5-110, as
amended by Section 3, Chapter 329, O.S.L. 2023 (26
O.S. Supp. 2025, Section 5-110), which relates to the
filing period for candidates; requiring declarations
of candidacy to be filed beginning the first Monday
in December of any odd-numbered year; requiring
filings to be made before the next succeeding
Wednesday; providing for a supplemental candidate
filing period for newly formed political parties;
allowing party to submit Declaration of Candidacy;

1 requiring accompaniment of petition or candidate
2 filing fee; establishing that candidates who file
3 during supplemental period shall be deemed the new
4 party's candidate in the General Election; allowing
5 for contest; amending 26 O.S. 2021, Section 5-119,
6 which relates to time for filing contest; clarifying
7 time period; amending 26 O.S. 2021, Section 8-103,
8 which relates to certificates of election; directing
9 for Certificates of Election to be issued to
10 unopposed candidates following certain filing period;
11 and providing an effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 1-102, as
amended by Section 1, Chapter 329, O.S.L. 2023 (26 O.S. Supp. 2025,
Section 1-102), is amended to read as follows:

Section 1-102. A Primary Election for federal, state, and
county officers shall be held on the ~~third~~ first Tuesday in ~~June~~
March of each even-numbered year, at which time each political party
recognized by the laws of this state shall nominate its candidates
for the offices to be filled at the next succeeding General Election
unless otherwise provided by law. No candidate's name shall be
printed upon the General Election ballot unless such candidate shall
have been nominated as herein provided, unless otherwise provided by
law; provided further that this provision shall not exclude the
right of a nonpartisan candidate to have his or her name printed
upon the General Election ballots. No county, municipality or
school district shall schedule an election on any date during the

1 twenty (20) days immediately preceding the date of any such primary
2 election.

3 SECTION 2. AMENDATORY 26 O.S. 2021, Section 1-103, is
4 amended to read as follows:

5 Section 1-103. If at any Primary Election, as described in
6 Section 1-102 of this title, no candidate for the nomination for
7 office of any political party receives a majority of all votes cast
8 for all candidates of such party for the office, no candidate shall
9 be nominated by such party for the office, but the two candidates
10 receiving the highest number of votes at such election shall be
11 placed on the official ballot as candidates for such nomination at a
12 Runoff Primary Election to be held on the ~~fourth~~ third Tuesday of
13 ~~August~~ June in the same year. No county, municipality or school
14 district shall schedule an election on any date during the twenty
15 (20) days immediately preceding the date of any such Runoff Primary
16 Election.

17 SECTION 3. AMENDATORY 26 O.S. 2021, Section 3-101, as
18 last amended by Section 1, Chapter 283, O.S.L. 2025 (26 O.S. Supp.
19 2025, Section 3-101), is amended to read as follows:

20 Section 3-101. A. No election required to be conducted by any
21 county election board shall be scheduled for a day other than
22 Tuesday.

23 B. Except as otherwise provided by law, no regular or special
24 election for any purpose shall be held by any county, school

1 district, technology center school district, municipality, fire
2 protection district, or other political subdivision authorized to
3 call elections except as follows:

- 4 1. The second Tuesday of February in any year;
- 5 2. The first Tuesday of March in any even-numbered year;
- 6 3. The first Tuesday of April in any year;
- 7 ~~3.~~ 4. The third Tuesday of June in any year;
- 8 ~~4.~~ 5. The fourth Tuesday of August in any odd-numbered year;
- 9 ~~5.~~ 6. The first Tuesday after the first Monday of November in
10 any year; and
- 11 ~~6.~~ 7. The second Tuesday of December, beginning in December of
12 2025, and every four (4) years thereafter.

13 C. In the event that a regular or special election date occurs
14 on an official state holiday, the election shall be scheduled for
15 the next following Tuesday. In the event that any day of a
16 candidate filing period occurs on a Saturday, Sunday, or any
17 official state holiday, that day of the filing period shall be
18 scheduled for the next business day.

19 D. For a special election called by the Governor as authorized
20 by law, the Governor shall be limited to the dates stated in
21 subsection B of this section. Provided, however, if a vacancy has
22 occurred in the office of a United States Representative, State
23 Senator, or State Representative, or in the event of a declared
24 national or state emergency that requires a special election, the

1 Governor may also call a special election as authorized by law on
2 the following dates:

- 3 1. The second Tuesday of January in any year;
- 4 2. The first Tuesday of March in any year;
- 5 3. The first Tuesday of May in an odd-numbered year;
- 6 4. The second Tuesday of July in an odd-numbered year;
- 7 5. The second Tuesday of September in an odd-numbered year;
- 8 6. The first Tuesday of October in an odd-numbered year; and
- 9 7. The second Tuesday of December in any year.

10 E. Notwithstanding any other provision of law or any provision
11 of a municipal charter, any municipality, school district,
12 technology center district, county, rural fire protection district,
13 or any other entity seeking to hold a regular or special election to
14 be conducted by a county election board on the same date as a
15 regular or special federal or state election, shall file the
16 resolution calling for the election with the county election board
17 secretary no later than seventy-five (75) days prior to the election
18 date. A candidate filing period of three (3) days, if so required
19 by the resolution, shall begin no later than ten (10) days following
20 the deadline to file the resolution with the secretary of the county
21 election board; provided, the filing period for such municipal
22 office may be scheduled on the same dates as the filing period for
23 state or federal office to be filled at such election.

1 F. Any school district, technology center district,
2 municipality, including any municipality governed by charter, rural
3 fire protection district, or any other entity seeking to hold a
4 special election for the purpose of filling a vacancy shall schedule
5 a candidate filing period of three (3) days to begin not more than
6 twenty (20) days following the date the resolution calling the
7 election is required to be filed with the secretary of the county
8 election board.

9 G. The provisions of this section shall apply to elections held
10 after January 1, 2026.

11 SECTION 4. AMENDATORY 26 O.S. 2021, Section 4-119, is
12 amended to read as follows:

13 Section 4-119. Any registered voter may make application under
14 oath to change political affiliation by executing a form prescribed
15 by the Secretary of the State Election Board at any time. The
16 county election board secretary in the applicant's county of
17 residence shall process and approve any such application for
18 political affiliation change upon receipt, except as provided in
19 Section 4-110.1 of this title and except during the period from
20 ~~April 1~~ December 1 in an odd-numbered year through ~~August 31,~~
21 ~~inclusive, in any~~ June 30 of the subsequent even-numbered year. The
22 secretary shall process and approve such applications for change of
23 political affiliation received or postmarked from ~~April 1~~ December 1
24 in an odd-numbered year through ~~August 31 in any~~ June 30 of the

1 subsequent even-numbered year after ~~August 31~~ June 30 of the
2 subsequent even-numbered year.

3 SECTION 5. AMENDATORY 26 O.S. 2021, Section 5-110, as
4 amended by Section 3, Chapter 329, O.S.L. 2023 (26 O.S. Supp. 2025,
5 Section 5-110), is amended to read as follows:

6 Section 5-110. A. Declarations of Candidacy provided herein
7 must be filed with the secretary of the appropriate election board
8 no earlier than 8:00 a.m. on the first ~~Wednesday of April~~ Monday in
9 December of any ~~even-numbered~~ odd-numbered year and no later than
10 5:00 p.m. on the next succeeding ~~Friday~~ Wednesday. Such
11 Declarations of Candidacy may be transmitted by United States mail,
12 but in no event shall the secretary of any election board accept
13 such Declarations after the time prescribed by law.

14 B. 1. A supplemental candidate filing period shall be held
15 beginning at 8:00 a.m. on the first Wednesday in April of each even-
16 numbered year and ending at 5:00 p.m. on the next succeeding Friday
17 for candidates of any newly formed political party recognized
18 pursuant to the provisions of Section 1-108 of this title. Such
19 party may submit a Declaration of Candidacy provided herein on
20 behalf of no more than one candidate for each office, to be filed
21 with the secretary of the appropriate election board;

22 2. Each Declaration of Candidacy shall be accompanied by the
23 petition or candidate filing fee as provided in Section 5-112 of
24 this title; and

1 3. Each candidate who files during the supplemental filing
2 period described herein shall be deemed to be the new party's
3 nominee for that office, and shall be placed on General Election
4 ballot as provided by law. Provided, the eligibility of any
5 candidate who files during the supplemental candidate filing period
6 may be contested pursuant to the provisions of Section 5-118 of this
7 title.

8 SECTION 6. AMENDATORY 26 O.S. 2021, Section 5-119, is
9 amended to read as follows:

10 Section 5-119. The petition must be filed no later than 5:00
11 p.m. on the second business day following the close of the filing
12 period during which the candidate filed.

13 SECTION 7. AMENDATORY 26 O.S. 2021, Section 8-103, is
14 amended to read as follows:

15 Section 8-103. The county election board secretary shall
16 certify a list of successful candidates for county offices and shall
17 provide Certificates of Election to the same following the General
18 Election, except that Certificates of Election may be issued to
19 unopposed candidates after 5 p.m. on the second business day
20 following the close of the filing period described in subsection B
21 of Section 5-110 of this title. The Secretary of the State Election
22 Board shall certify a list of successful candidates for offices for
23 which the ~~Board~~ Secretary accepts filings of Declarations of
24 Candidacy and shall provide Certificates of Election to the same

1 following the General Election, except that Certificates of Election
2 may be issued to unopposed candidates after 5 p.m. on the second
3 business day following the close of the filing period described in
4 subsection B of Section 5-110 of this title.

5 SECTION 8. This act shall become effective January 1, 2027.

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7 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/09/2026 - DO PASS,
8 As Amended.
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